

25LBCV01213 25LBCV01213

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-02

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Case Number: 25LBCV01213 Hearing Date: July 2, 2026 Dept: S27

1. Complaint

Plaintiff, Iscel-Cattleya Solis

filed this action against Defendants, Gal Nisim Gawy, Yoni Aflalo, Master Home Builders, Inc., Priscilla Acosta, and Easy Law, Inc. for damages arising out of Defendants' alleged misconduct in connection with repairs in her home.

2. 12/11/25

Hearing on Special Motion to Strike

On 12/11/25, the Court heard and granted Acosta and Easy Law's special motion to strike. The Court found the entirety of Plaintiff's complaint relates to the recording of mechanic's liens, which constitutes protected activity under the anti-SLAPP statute and is also absolutely privileged activity under Civil Code §47.

3. Motion

for Attorneys' Fees

a. Relief

Sought

Defendants seek to recover their attorneys' fees incurred in connection with their anti-slapp motion, including fees incurred in connection with the instant motion for fees, in the total amount of \$6651.73.

b. Authority

for Fees Award

A “prevailing defendant” on an anti-SLAPP motion “shall be entitled to recover his or her attorney fees and costs.” CCP §425.16(c)(1); Ketchum v. Moses (2001) 24 Cal. 4th 1122, 1133. “The mandate of subdivision (c)(1) is clear: prevailing defendants are entitled to attorney fees.” Ross v. Seyfarth Shaw LLP (2023) 96 Cal. App. 5th 722, 744.

The fee award “should ordinarily include compensation for all the hours reasonably spent, including those relating solely to the fee.” A prevailing defendant on an anti-SLAPP motion is entitled to seek fees and costs incurred in connection with the anti-SLAPP motion itself, but is not entitled to an award of attorney’s fees and costs incurred for the entire action. Wanland v. Law Offices of Mastagni, Holstedt & Chiurazzi (2006) 141 Cal. App. 4th 15, 21.

A party may file a noticed motion for attorney’s fees after receiving a successful ruling on the anti-SLAPP motion. Martin v. Inland Empire Utilities Agency (2011) 198 Cal. App. 4th 611, 631.

c. Merits

Defense Counsel supports the motion with her declaration, wherein she declares that she is attaching billing records as Exhibit B. The billing records show attorneys’ fees incurred in the total amount of \$4270, all of which appear to have been both reasonably and necessarily incurred in connection with the anti-slapp motion.

The Court finds there is, however, no evidence supporting the request for the remaining \$2381.73 in fees requested (based on Defendant’s total request of \$6651.73, found at page one, line 25 of the notice of motion). The points and authorities, at page 3, lines 27-28, indicate fees to date total \$5200, with \$1200 in additional fees to be incurred in connection with this motion and \$1181.73 in costs. $\$5200 + \$1200 + \$1181.73 = \7581.73 , not \$6651.73. Additionally, the Declaration of Counsel is entirely silent on fees incurred in connection

with the motion for fees, and there is no other evidence with the motion; the Court cannot award fees without evidence.

Finally, the costs at issue were the subject of a memorandum of costs, filed by Defendants on 12/22/25, and are therefore not at issue on this motion.

The Court awards the \$4270 in fees that are fully supported by Defense Counsel's declaration. No additional fees or costs are awarded by way of this motion.

d. Notice

Defendants are ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.